2.1 Conflicts over the Draft

Imagine being told you have to fight in a war you may not even support. Then consider that your wealthy neighbor is told the same thing but can pay someone else to take his place. During the Civil War, many men realized they were getting a bad deal.

MAIN IDEA In reaction to forced military service during the Civil War, people in both the North and the South staged riots.

MILITARY SERVICE IN THE SOUTH

Waging a civil war required a steady supply of men volunteering to fight as soldiers. At first, men from both the North and the South rushed to sign up. However, as battles wore on, numbers of enthusiastic volunteers began to dwindle. The South was first to acknowledge this problem.

When war first broke out, 100,000 southern men volunteered to fight for the Confederacy. But as their yearlong enlistments were ending, many soldiers returned home to their families and farms. In 1862, the Confederate government, worried that its armies would be short of men as the Union was stepping up its attacks, instituted a **draft**, or a mandatory term of military service. The Confederacy required three years of service for all white men between the ages of 18 and 35.

The draft didn't apply to every man equally, however. Wealthy southerners could pay other men to serve in their places. They could also choose to pay a fee of $500—an amount out of reach for most men. Individuals who owned 20 slaves or more were excused from the draft and their voluntary enlistments altogether.

Military **exemptions**, or releases from the obligation to serve, widened the growing divide between rich and poor in the South. A non-slaveholding man named Jasper Collins remarked that exemptions made the Civil War a "rich man's war, and a poor man's fight." Some soldiers deserted, or left, their units. Desertion remained a major problem for the Confederacy throughout the war.

The gap between rich and poor spread beyond military service. Convinced that greedy merchants were hoarding flour and supplies, women rioted in Richmond, the Confederate capital. They smashed storefronts and stole bread and everything else they could grab, from bacon to boots. One young girl explained, "We are starving . . . each of us will take a loaf of bread. That is little enough for the government to give us after it has taken all our men."

DRAFTING SOLDIERS IN THE NORTH

The North also faced the need for new soldiers. Death, disease, and desertion continually reduced the size of the army, so the Union instituted its own draft in the form of a law called the **Conscription Act** in March 1863. Men between 20 and 45 years of age were liable to be drafted into the military, but, as in the South, they could pay to avoid service for $300—a fee only wealthy families could afford. These exemptions ignited draft riots in cities throughout the Northeast.

On July 13, the attempt to enforce the draft in New York City set off the most destructive civil disturbance in the city's history. Rioters torched government buildings. Police struggled for three days to control the riot. Eventually, Union troops had to rush from the battlefields in Pennsylvania to New York City to aid the police. Union soldiers fired into groups of fellow citizens who were rioting. About 300 people, more than half of them police officers and soldiers, were injured, and more than 100 people died, most of them rioters.

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Some whites in New York blamed African Americans for the unrest surrounding the draft riots. In fact, African Americans became **scapegoats**, or individuals or groups blamed for the mistakes or faults of others. Some people claimed that African Americans were responsible for the war and that they were taking jobs away from white workers. Angry white rioters killed many African Americans and destroyed their homes. Such violence prompted many African Americans to flee New York City during the draft riots. They feared for their lives.

In an effort to control riots and curb criticism of the war, the Lincoln administration suspended the writ of ***habeas corpus***, or the right of an arrested person to be brought before a judge before going to jail. More than 14,000 people were jailed after being accused of disloyalty to the Union. As a result of the riots, some New York men with families who had no other means of financial support received exemptions from the draft.

HISTORICAL THINKING

1. **READING CHECK** Why did both the North and the South enact military drafts?
2. **ANALYZE LANGUAGE USE** How did Jasper Collins describe the Civil War, and why?
3. **COMPARE AND CONTRAST** In what ways were the Confederate and Union drafts similar, and in what ways were they different?



CRITICAL VIEWING In this photo still from the 2016 film *Free State of Jones*, Newton Knight, center, and his fellow soldiers fight off Confederate troops trying to put down their rebellion. What do you notice about the men in the photo?

Open Rebellion in Mississippi

Newton Knight of Mississippi enlisted in the Confederate Army in July 1861. Angered by the law exempting white men who owned 20 or more slaves, Knight deserted his battalion in October 1862. Back home, he witnessed his fellow southerners suffer abuses at the hands of Confederate soldiers, and he decided to form an opposition group. Other deserting soldiers and escaped slaves joined him, and by late 1863, they had organized into the Jones County Scouts. The Jones County Scouts eventually numbered more than 1,000. To symbolize their open rebellion, Knight and his men raised the American flag over the Jones County courthouse. They evaded capture by disappearing into the swamps, with local civilians supplying them with weapons, food, and information. Though Confederate officers eventually subdued the rebellion, the Jones County Scouts fought against the Confederacy until it fell.

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